The same confession was cited as ‘incontrovertible evidence’ on the floor of Parliament. And it was the basis on which Pakistan was held responsible for the attack. As a reaction, the Central government mounted a massive military offensive that brought the neighbours to the brink of nuclear war. The Delhi High Court observed: ‘The nation suffered not only an economic strain, but even the trauma of an imminent war.’

Further, Afzal was denied proper legal assistance. He had no defence lawyer in the period between his arrest on 15 December 2001, and the filing of the charge sheet on 14 May 2005; in other words, no counsel had studied the complex case. The court appointed Neeraj Bansal as amicus curiae.

Afzal’s wife Tabassum had this to say on Bansal’s efforts in the court: ‘The court-appointed lawyer never took instructions from Afzal, or cross-examined the prosecution witnesses. That lawyer was communal and showed his hatred for my husband.’[9] Afzal’s lawyer in the high court, Colin Gonsalves, says, *‘Amicus curiae* is an aid to the court and not a defence lawyer.’ In an application dated 8 July 2002, to the trial court, Afzal expressed his helplessness. ‘I am not satisfied by the state counsel appointed by the court. I need a competent senior advocate. The way the court is treating with me I could not get justice.’

The holes in the prosecution story are too big to be missed. And the problems start at the very beginning, with the question of S.A.R. Geelani’s arrest. The prosecution claimed that the police reached Afzal through a sequence of arrests beginning with Geelani, whom the police could trace first because he held a mobile phone registered with the telecom company Airtel. But the letter from Airtel furnishing the call records and Geelani’s residential address was dated 17 December 2001; all the accused had been arrested by 15 December.

How did the Delhi Police get to Geelani, the first person arrested in the case, in the early hours of 15 December, just two days after the attack? There was no evidence in the case records to link Geelani to the site of crime till the details of call records from Airtel arrived on 17 December, which was cited by the police in their charge sheet as the clue that enabled them to trace Geelani (and through him, Afzal). So how and why did they pick him up two days earlier?

The police allegedly recovered slips of paper from the pockets of the slain terrorists, each containing five mobile numbers. None of these numbers